

24STCV18485 24STCV18485

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C729%2C08%2F10%2F2026

Source SHA-256: 430b9e8ae9d80186ec03d0a9463b845e99f5eec6cfa67bbb88f881f67a863908

Case Number: 24STCV18485 Hearing Date: August 10, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

U-HAUL CO. OF CALIFORNIA,

vs.

CAISER OWENS, et al.

Case

No.: 24STCV18485

Hearing Date: August 10, 2026

Plaintiff U-Haul Co. of

California's Request for Default Judgment

Having considered all documents submitted in support of a default judgment, the Court rules as follows:

Background

On July 25, 2024, Plaintiff U-Haul Co. of California ("Plaintiff") filed its operative Complaint against Defendants Caizer Owens, Laurence Reed, and Jacob Stewart [erroneously named James Stewart] (collectively, "Defendants") alleging nine causes of action: (1) declaratory relief- rescission [against Owens]; (2) declaratory relief- no duty to indemnify and defend [against Owens]; (3) declaratory relief- breach of contract [against Owens]; (4) declaratory relief- breach of contract [against Owens]; (5) declaratory relief- breach of contract [against Owens]; (6) declaratory relief- breach of contract [against Owens]; (7) unclean hands [against Owens]; (8) breach of covenant of good faith and fair dealing [against Owens]; and (9) fraud [against Owens]. On October 31, 2024, Plaintiff filed an amendment to the complaint correcting the incorrectly named Defendant James Stewart to the correct name of Jacob Stewart.

On June 20, 2025, the clerk entered default against Defendant Owens. On November 19, 2025, the clerk entered default against Defendant Reed.

On March 10, 2026. The clerk entered default against Stewart.

On July 27, 2026, Plaintiff filed its Request for Court Judgment to be heard on August 10, 2026.

Party's Request

Plaintiff requests the Court enter a default judgment against Defendants Caizer Owens, Laurence Reed, and Jacob Stewart, and award Plaintiff a declaratory judgment stating that the Rental Contract (# 79796352) entered between the Plaintiff and Defendant Owens on April 29, 2024, and any liability coverage provided, and any liability coverage purchased are canceled, null, and void ab initio and rescinded; that Owens is not entitled to any benefits or coverage affording liability arising or relating to the collision on May 1, 2024, which is the subject of this action; that Owens materially breached the contract with the Plaintiff and due to the material breach by Owens the Plaintiff's contractual obligations are void; and that Plaintiff has no duty to indemnify or defend Owens against any claims for injuries or damages by Reed and Stewart related to the alleged incident on or about May 1, 2024.

Discussion

Plaintiff submitted a completed default judgment packet, with all applicable attachments. The Court finds sufficient evidence to justify the requested award and grants Plaintiff's request in full.

Conclusion

The application for default judgment filed on July 27, 2026, is granted. Declaratory Judgment on the Complaint in favor of Plaintiff is entered against Defendants Caizer Owens, Laurence Reed, and Jacob Stewart.

Plaintiff is ordered to give notice of this ruling.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court